

22. **Formalities to be compiled with before giving sanction to the opening of a railway** – (1) the Central Government shall, before giving its sanction to the opening of a railway under Sec. 21, obtain a report from the commissioner that –

- a) he has made a careful inspection of the railway and the rolling stock that may be used thereon ;
- b) the moving and fixed dimensions as laid down by the Central Government have not been infringed ;
- c) the structure of lines of rails, strength of bridges, general structural character of the works and size of, and maximum gross load upon, the axles of any rolling stock, comply with the requirements laid down by the Central Government ; and
- d) in his opinion , the railway can be opened for the public carriage of passengers without any danger to the public using it.

(2) if the Commissioner is of the opinion that the railway cannot be opened without any danger to the public using it, shall be, in his report, state the grounds therefore, as also the requirements which, in his opinion, are to be complied with before sanction is given by the Central Government.

- (4) The Central Government, after considering the report of the Commissioner, may sanction the opening of a railway under Sec.21 as such or subject to such conditions as may be considered necessary by it for the safety of the public.

Comments

Section 22 lays down the formalities to be complied with before sanction to the opening of a railway is given by the Central Government.

Shall – It is a well – known principle that in the interpretation of status that where the situation and the context warrants it, the word “shall” used in a section or rule of a status has to be constructed as “may”.

23. **Section 21 and 22 to apply to the opening of certain works** – The provision of Secs. 21 & 22 shall apply to the opening of the following works if they form part of, or are directly connected with, a railway used for the public carriage of passengers and have been constructed subsequent to the giving of a report by the Commissioner under Sec 22, namely :

- (a) opening of additional lines of railway and deviation lines;